

**BEFORE THE PUBLIC UTILITIES COMMISSION
OF THE STATE OF CALIFORNIA**



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Order Instituting Rulemaking to
Advance Demand Flexibility
Through Electric Rates.

Rulemaking 22-07-005
(Filed July 14, 2022)

**OPENING COMMENTS OF THE VEHICLE-GRID INTEGRATION COUNCIL ON
THE PROPOSED DECISION ADOPTING GUIDELINES FOR PACIFIC GAS AND
ELECTRIC COMPANY, SOUTHERN CALIFORNIA EDISON COMPANY, AND SAN
DIEGO GAS & ELECTRIC COMPANY ON DEMAND FLEXIBILITY RATE DESIGN
PROPOSALS**

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In accordance with the Rules of Practice and Procedure of the California Public Utilities Commission (“Commission”), the Vehicle-Grid Integration Council (“VGIC”) hereby submits these opening comments on the *Proposed Decision Adopting Guidelines for Pacific Gas and Electric Company, Southern California Edison Company, and San Diego Gas & Electric Company On Demand Flexibility Rate Design Proposals* (“Proposed Decision” or “PD”), issued by Administrative Law Judges Rajan Mutialu and Carolyn Sisto on July 25, 2025.

I. INTRODUCTION.

VGIC appreciates the opportunity to comment on the PD and the next stage of development for California’s dynamic rate vision. VGIC strongly believes that electric vehicles (“EVs”) are well-positioned to take advantage of dynamic pricing and provide immense ratepayer value via load flexibility and EV battery discharge. Vehicle-grid integration (“VGI”) strategies, including managed unidirectional charging, bidirectional charging and discharging, and distributed energy resource (“DER”)-paired charging, can unlock EVs as strategic grid assets, including through participation in dynamic rates. These price signals can directly influence customer behavior or

integrate with automated charging management systems for a “behind the scenes” customer experience. In other words, VGI strategies will play a key role in helping California meet its ambitious clean energy and transportation electrification goals, while alleviating upward pressure on rates. The dynamic rates developed under this guidance to comply with the California Energy Commission’s (“CEC”) Load Management Standards (“LMS”) are one key tool to unlock these benefits.

In response to the PD, VGIC offers recommendations to ensure that dynamic rates unlock maximum load flexibility, particularly from EVs. Our comments are summarized below:

- VGIC strongly urges the Commission to modify the PD to explicitly direct the IOUs to offer dynamic export compensation for non-Net Energy Metering (“NEM”), non-Qualifying Facility (“QF”) customer resources and aggregations, as supported by the record of this proceeding.
 - Providing dynamic export compensation through demand flexibility rates will unlock grid services from EVs that are otherwise unavailable.
 - The record references sufficient precedent in support of establishing non-NEM, non-QF retail export compensation rates.
 - The Commission has previously adopted and authorized significant ratepayer investment in non-NEM, non-QF export compensation initiatives.
 - The Commission-adopted *Demand Flexibility Design Principles* specifically includes offering dynamic export compensation to all export-capable DERs.
- The Commission should consider alternative structures to unlock distribution-level load flexibility, including programmatic approaches.

- The Commission should allow for flexibility in customer protection measures.

II. VGIC STRONGLY URGES THE COMMISSION TO EXPLICITLY DIRECT THE IOUS TO OFFER DYNAMIC EXPORT COMPENSATION FOR NON-NEM NON-QF CUSTOMER RESOURCES AND AGGREGATIONS OF CUSTOMER RESOURCES.

Although the Commission’s own Demand Flexibility Design Principles includes and the Staff Proposal recommends that dynamic rates include technology-agnostic export compensation, the current PD “declines to provide guidance on whether the Large IOUs should include export compensation in DF Rate Proposals.”¹ VGIC believes this is unsupported by the record and strongly disagrees with this determination. We urge the Commission to direct the IOUs to offer dynamic export compensation within their demand flexibility (“DF”) rates.

A. Providing dynamic export compensation through demand flexibility rates will unlock grid services from EVs that are otherwise unavailable.

The Commission can unlock far greater value from EV customers and fleets by providing customers with the needed price signal to not only shift load but also export energy during peak times. By compensating customers for exporting energy during periods of high system demand, these rates can enhance grid reliability, reduce the need for costly peak-period procurement, and increase other grid services provided by EVs. For EV customers and fleets in particular, dynamic export compensation enables them to contribute to both load reduction and energy supply, unlocking additional value that is otherwise unavailable under import-only rate designs. As discussed by VGIC in comments on the Working Group Report, without export compensation, the potential grid value is limited to the avoided charging that would have occurred in a given period, leaving the opportunity to send energy back to the grid when it is needed most entirely untapped.²

¹ PD at 87.

² VGIC Opening Comments on Working Group Report at 5.

VGIC believes that the Commission should leverage this bidirectional charging capability and direct the IOUs to implement, or build on existing implementations of, dynamic export rates.

It is important to leverage this capability in dynamic rates because there are limited opportunities in California for EVs to provide exports to the grid. California currently provides export compensation for EVs in some demand response programs, such as the Emergency Load Reduction Program (“ELRP”) and the Demand Side Grid Support (“DSGS”) program, which are both event-based and do not allow EVs to provide regular exports for daily load shifting. Additionally, the ELRP is only authorized through 2027, while DSGS has not been provided with any further funding from the legislature, signaling its likely sunset prior to the 2027 timeframe for the large IOUs’ dynamic rates. Pacific Gas and Electric (“PG&E”) and San Diego Gas and Electric (“SDG&E”) also have pilots that compensate for EV exports, PG&E’s Vehicle-to-Everything (“V2X”) Pilots and SDG&E’s Dynamic Export Rate Pilot, but both are tied to developing and advancing the dynamic rates that will be developed pursuant to this PD’s guidance.

Additionally, large IOUs currently steer bidirectional charging customers seeking compensation away from Net Energy Metering (“NEM”) or Net Billing Tariff (“NBT”) export compensation provided to solar customers. These tariffs designed for “eligible customer generators”, defined in statute as a customer “who uses a *renewable* electrical generation facility.”³ For example, in order for energy storage to participate in NEM or NBT, it must be “an addition or enhancement to a renewable electrical generation facility,” and “configured and metered in order to ensure that NEM credit can only be generated by eligible renewable electric generation.”⁴ Although VGIC believes there are existing strategies that can be leveraged to ensure bidirectional

³ PUC Section 2827.

⁴ D.14-05-033 at 15.

charging systems do not violate these so-called “NEM-integrity” rules and other NEM energy storage requirements, the large IOUs’ practice of nudging these customers away from NEM or NBT demonstrates another realm where willing bidirectional charging customers are not welcomed to provide valuable services to the grid and, in turn, help alleviate system and ratepayer costs.

Notably, California has already shown the potential for dynamic rates to unlock significant export capacity from EVs. The largest grid-parallel bidirectional charging site in North America is located at the Oakland Unified School District and participating in PG&E’s V2X pilot with dynamic export compensation, providing 2.1 GWh of energy back to the grid each year.⁵ Similar projects could be deployed across fleets and EVs statewide, multiplying the reliability and cost-saving benefits for the grid. However, absent proactive direction from the Commission requiring the IOUs to offer export compensation, California will be unable to build on this effort to maximize the available EV capacity and grid services from this flexible resource. For example, We have already seen Southern California Edison (“SCE”) operating out of alignment with the Commission’s vision in implementing their expanded dynamic rate pilot. D.24-01-032 includes an *Attachment B* specifically dedicated to the treatment of bidirectional charging equipment within the expanded rate pilot. However, D.24-01-032 did not include specific Commission direction to SCE to provide compensation for non-NEM exports. SCE has indicated that these non-NEM customers are not eligible for the expanded dynamic rate pilot.⁶ VGIC believes that without explicit

⁵ See “Zum Launches Nation’s First School District with 100% Electric, Bidirectional V2G School Bus Fleet in Oakland” <https://www.ridezum.com/press-release/zum-launches-nations-first-school-district-with-100-electric-bidirectional-v2g-school-bus-fleet-in-oakland/>

⁶ In response to a recent data request from Cal Advocates, SCE states “while not explicitly discussed in our implementation plan, Net Energy Meter (NEM) and Solar Billing Plan (SBP) customers are eligible to participate in the expanded pilot.” (see <https://docs.cpuc.ca.gov/PublishedDocs/SupDoc/A2403019/7847/546561478.pdf> page B-12). When Cal

direction from the Commission, the large IOUs will not support non-NEM export compensation in the dynamic rate pilots. In turn, the grid benefits of VGI will remain latent, representing an immense missed opportunity to mitigate upward pressure on rates.

B. The record references that sufficient precedent exists in support of establishing non-NEM, non-QF retail export compensation rates.

It is unclear to VGIC why the Commission does not direct the IOUs to adopt export compensation rates in the PD. One item the IOUs have raised is that “Non-NEM, non-QF export compensation may raise questions about the boundary between retail and wholesale jurisdiction,”⁷ which is cited in the PD. However, there is sufficient precedent to show that export compensation can be established for non-PURPA qualifying facilities by state utility regulatory commissions. VGIC references in its comments on the staff proposal⁸ the Value of Distributed Energy Resources (“VDER”) tariff design used in New York. Specifically, the New York Public Service Commission (“NY PSC”) established an avoided cost-based VDER in a March 2017 order (“VDER Transition Order”).⁹ In the March 2017 VDER Transition Order, the Commission states, “VDER tariffs will be expanded beyond NEM-eligible [Distributed Generation (DG)] technologies to all DER in a technologically-neutral, value-focused manner as soon as practicable.”¹⁰ In addition, the VDER Transition Order directed that stand-alone energy storage projects be eligible under the VDER

Advocates asked “Please explain what requirements must be met for customers enrolled in the Expanded Pilot to export load,” SCE responded by stating “Customers enrolled in NEM 1.0, NEM 2.0, or SBP and enrolled in an eligible pilot rate, and are not enrolled in any disqualifying demand response programs, would be eligible to participate in the pilot and receive credits for exporting load.” (see <https://docs.cpuc.ca.gov/PublishedDocs/SupDoc/A2403019/7847/546561478.pdf> at page B-14).

⁷ Working Group Report at 95.

⁸ VGIC Comments on Track B Working Group Report at 9.

⁹ Case 15-E-0751, et al., Order on Net Energy Metering Transition, Phase One of Value of Distributed Energy Resources, and Related Matters (issued March 9, 2017) (Phase One VDER Order)

¹⁰ Ibid.

tariff "as expeditiously as possible."¹¹ NY Department of Public Service ("DPS") staff then published a staff whitepaper, which details **unified, technology-agnostic, avoided cost-based export compensation**. VGIC views this whitepaper as directly analogous to the CPUC Energy Division staff's *Advanced Strategies for Demand Flexibility Management and Customer DER Compensation* ("2022 CalFUSE Whitepaper") and the subsequent 2023 Staff Report filed in this proceeding, which also envisions **providing unified, technology-agnostic, avoided cost-based export compensation**. Critically, the NY DPS staff whitepaper proposed that standalone energy storage, including storage paired with consumption load, be eligible for VDER tariff for any hourly injections to the grid.¹² NY DPS staff proposed that Value Stack compensation be determined and calculated as for existing resources. Under the NY DPS staff whitepaper section titled "Mitigating Inequities to Non Participants," the NY DPS staff proposal also required that standalone storage customers take service on hourly pricing, such that both charges and credits accurately reflect hourly values. This, too, is directly analogous to the CPUC ED staff's 2022 CalFUSE Whitepaper focus on "symmetrical" pricing, ensuring that both consumption and export are priced fairly. In its September 12, 2018, *Order on Value Stack Eligibility Expansion and Other Matters*, the NY PSC adopted the NY DPS staff proposal, **thereby instituting non-NEM, non-QF export compensation for customers of New York utilities**. Critically, VDER is not a pilot, like California's ELRP or PG&E's V2X Pilots – rather, it is a mass-market, cost-based tariff, fully adopted by utilities and made available to all interested customers. Similar to the position of California's IOUs', the NY Joint Utilities also argued that "larger resources, including storage resources, should be required to seek energy and capacity compensation from the wholesale market

¹¹ Ibid.

¹² Case 15-E-0751, Staff Proposal on Value Stack Eligibility Expansion (filed May 22, 2018).

rather than receiving those elements as part of the Value Stack” (i.e., where wholesale market price signals are “passed through,” just as proposed in this PD). The NY Order then states, in no uncertain terms, that **“The Staff Proposal provides a rational and appropriate framework for the eligibility of standalone storage and it is therefore adopted.”**¹³ Lastly, the Order explicitly deems vehicle-to-grid (“V2G”) systems as eligible. In 2023, the NY DPS expanded on the eligibility finding for V2G systems by further explicitly directing each utility to ensure V2G systems are eligible.¹⁴

Although the NY Joint Utilities argued, similar to the CA IOUs, that these non-NEM, non-QF resources should be participating in the wholesale market, the PSC found and later reaffirmed that non-NEM, non-QF systems are to be provided with the technology-neutral, avoided cost-based export compensation. With this in mind, VGIC strongly recommends the CPUC explicitly direct the IOUs to establish dynamic export compensation for non-NEM non-QF resources. Not only were these resources specifically envisioned as eligible in the 2022 whitepaper, the 2023 decision adopting rate design principles, and the 2024 decision adopting expanded dynamic rate pilot, but there is **no factual basis for the IOUs’ assertions that export compensation cannot be provided to these resources.**

Regarding the impact of these policies, it is worth highlighting that New York customers with non-NEM, non-QF resources, including V2G resources, have been actively enrolling in

¹³ NY PSC Case 15-E-0751 – In the Matter of the Value of Distributed Energy Resources and NY PSC Case 15-E-0082 – Proceeding on Motion of the Commission as to the Policies, Requirements and Conditions for Implementing a Community Net Metering Program. *Order on Value Stack Eligibility Expansion and Other Matters*. September 12, 2018. Page 16.

¹⁴ NY PSC, CASE 18-E-0138 - Proceeding on Motion of the Commission Regarding Electric Vehicle Supply Equipment and Infrastructure. *Order Approving Midpoint Review Whitepaper’s Recommendations with Modifications*. November 16, 2023.

<https://documents.dps.ny.gov/public/Common/ViewDoc.aspx?DocRefId=%7b6057D98B-0000-C912-9B64-A2D769C4790D%7d>

VDER and receiving compensation from the tariff. For example, a rideshare fleet by the company Revel has operated a V2G site since 2022 enrolled in VDER and receiving retail compensation for participation in the tariff.¹⁵ In the multiple years that VDER has been actively offered to V2G customers, issues surrounding federal jurisdiction or resource eligibility for retail export compensation tariffs have not been raised.

C. The Commission has previously adopted and authorized significant ratepayer investment in non-NEM, non-QF export compensation initiatives.

The clear and repeatedly upheld precedent established by the NY PSC shows that state utility commissions can establish mass-market, tariffed export rates for non-NEM, non-QF resources. This Commission itself has also adopted and authorized significant ratepayer investment in these types of export compensation initiatives, including the following California IOU efforts that allow exports from EVs:

- PG&E has current Vehicle-to-Everything (“V2X”) pilots, which encourages EVs to export under the utility’s Hourly Flex Pricing (“HFP”) signal, which uses the same price engine and API as PG&E’s expanded dynamic rate pilot authorized in this proceeding.¹⁶
- SDG&E allows EVs and other customer DERs to export in its Dynamic Export Rate Pilot, which sends price signals based on the CAISO day-ahead price and a generation capacity component.¹⁷

¹⁵ SEPA, *Case Study: Revel Rideshare— Commercial Fleet V2G & Demand Response*, September 2023: https://s3.us-east-1.amazonaws.com/fonteva-customer-media/00Do0000000Yi66EAC/jPnGYohk_SEPA_Case_Study_Revel_Rideshare_State_of_Bidirectional_Charging_pdf

¹⁶ PG&E’s V2X were approved by the Commission in Resolution E-5192 pursuant to D.20-12-029.

¹⁷ SDG&E’s Dynamic Export Rate Pilot was approved in D.23-11- 006.

- Southern California Edison (“SCE”) has proposed a new EV export rate, their Vehicle Grid Resource Proposal (“VGRP”), which would provide export compensation for EVs.¹⁸

Based on VGIC’s detailed engagement in the development of all three of these options since the beginning of each effort, none of these pilots or proposals have been held up or opposed on the basis of potential overlap or complexities with wholesale market operations, rules, or participation.

D. The Commission-adopted Demand Flexibility Design Principles include offering dynamic export compensation to all export-capable DERs.

In D.23-04-040, the Commission adopted Demand Flexibility Design Principles, including Demand Flexibility Design Principle 6: **“Demand flexibility tariffs should provide marginal cost-based compensation for exports to enable economically efficient grid integration of customer-sited electrification technologies and distributed energy resources.”**¹⁹ This principle was adopted because the Commission recognized that “Customer exports should be compensated commensurate to the real-time value that those exports provide the grid.”²⁰ and noted that “This will create a stable pathway for customers to adopt export-capable DERs and electrification technologies (e.g., bidirectional electric vehicle chargers) without creating cost-shifts for other customers.”²¹ At the time the principles were developed, there were discussions about what would be an appropriate dynamic export compensation rate, but no party opposed the principle that an export compensation rate should be offered. In fact, the offering of a technology-neutral export rate was supported by multiple parties, including the California Environmental Justice Alliance

¹⁸ VGRP is currently being taken up in A.24-03-019.

¹⁹ D.23-04-040 at 34.

²⁰ D.23-04-040 at 33.

²¹ D.23-04-040 at 33.

(“CEJA”),²² California Energy Storage Alliance (“CESA”),²³ Center for Accessible Technology (“CforAT”),²⁴ Enchanted Rock,²⁵ 350 Bay Area and The Climate Center,²⁶ and SCE.²⁷

These Demand Flexibility Design Principles were used to guide parties’ dynamic rate proposals and responses to those proposals, and should be used to direct the Commission’s guidance in this PD. It is not appropriate at this time for the Commission to adopt guidance that goes against earlier Commission orders. VGIC respectfully questions the fundamental value of the Demand Flexibility Design Principles decision if the subsequent guidelines detailed in this PD represent such a significant departure from the adopted design principles. In line with the Commission-adopted principle, this PD should direct the IOUs to adopt export compensation that is marginal and cost-based for all DERs that are capable of providing exports. With this in mind, VGIC recommends the following Finding of Fact be added to the PD:

It is reasonable for the Large IOUs to include marginal, cost-based export compensation in DF Rate Proposals.

III. THE COMMISSION SHOULD CONSIDER ALTERNATIVE PROGRAMATIC STRUCTURES TO UNLOCK DISTRIBUTION VALUE.

VGIC understands the desire to unlock the distribution value that can be provided by DERs to avoid unnecessary distribution upgrades, as distribution costs are expected to increase significantly in the coming years. The 2023 Kevala Electrification Impacts Study Part 1 (“EIS Part 1”) estimates that distribution system investment from electrification will amount to \$51 billion

²² CEJA Opening Comments on Phase 1 Scoping Memo at 12.

²³ CESA Opening Comments on Phase 1 Scoping Memo at 1.

²⁴ CforAT Opening Comments on Phase 1 Scoping Memo at 14.

²⁵ Enchanted Rock Opening Comments on Phase 1 Scoping Memo at 5.

²⁶ 350 Bay Area and The Climate Center Opening Comments on Phase 1 Scoping Memo at 8.

²⁷ SCE Opening Comments on Phase 1 Scoping Memo at 10.

by 2035.²⁸ On the other hand, Cal Advocates’ recent Distribution Grid Electrification Model (“DGEM”) study and report indicates that through load management, including primarily EV load management, this value can be reduced to \$22.7 billion.²⁹ These savings underscore the importance of deploying the most effective strategies to optimize use of the existing distribution system and avoid or defer costly upgrades.

At the same time, using circuit-specific and highly localized pricing, even if circuits are clustered, raises geographic equity and fairness concerns. Because different customers would face different price signals based on their circuit conditions, customers could face systematically higher or lower distribution costs compared to other customers. As discussed by the PD, “If constrained areas of the distribution grid are located in low-income or disadvantaged communities, where cost of service is higher, this could raise concerns regarding the equity in differential pricing.”³⁰ These impacts could result in uneven access to cost savings opportunities, and given these concerns, it is unclear whether dynamic distribution pricing is the best way to unlock distribution value.

Programmatic approaches have also been proven to unlock distribution value, particularly for EV customers, and should be considered as alternative approach. In these programs, third-party aggregators enroll EV charging customers in the utility distribution programs and integrate with the utility’s operations to respond to real-time distribution conditions. Such programs can “even out” load across targeted time periods, prevent overload on distribution equipment, and create additional headroom on constrained substations, without imposing circuit-specific price

²⁸ Kevala, *Electrification Impacts Study Part 1: Bottom-Up Load Forecasting and System-Level Electrification Impacts Cost Estimates*, May 9, 2023.

²⁹ Cal Advocates, *DGEM 2.0 Preliminary Results*, October 21, 2024, <https://www.publicadvocates.cpuc.ca.gov/-/media/cal-advocates-website/files/press-room/reports-and-analyses/241024-public-advocates-office-dgem-20-preliminary-results.pdf>

³⁰ PD at 45.

disparities. They typically provide predictable payments to customers for performance, with fixed monthly compensation for participation or payment for performance in events. As these programs also typically span much larger areas, such as entire substations, cities, or utility areas, a wide variety of customers have access to the same payment amounts, instead of significantly advantaging or disadvantaging customers on constrained or unconstrained circuits.

These managed charging programs have shown significant success in providing distribution value. Baltimore General Electric (“BGE”) ran a successful Smart Charge Management (SCM) Demonstration program that specifically targeted optimizing distribution usage. The program significantly reduced non-coincident peaking by 33% on individual feeders.³¹ This was done by orchestrating EV charging in a particular area, prioritizing customer charging based on customer departure times and EV battery state of charge. SCE has also requested approval for their Orchestrated Charging and Advanced Resiliency for Distribution (“ORCHARD”) Program, which will allow SCE to utilize a centralized managed charging to unlock distribution value.³²

VGIC recommends that the Commission allow this programmatic structure to be used as the dynamic distribution component, at least for EV customers. Under this approach, customers could still receive a dynamic price signal to benefit system and transmission conditions, but the EV distribution load management program would support local distribution system capacity.

IV. THE COMMISSION SHOULD ALLOW FOR FLEXIBILITY IN CUSTOMER PROTECTION MEASURES.

³¹ SEPA, *The State of Managed Charging in 2024* at p.43: <https://sepapower.org/resource/state-of-managed-charging-in-2024/>

³² SCE Advice Letter 5536-E.

In the PD, the Commission adopts requirements that the IOUs offer consumer protection measures to reduce customer bill volatility and the risk of customers being exposed to unexpectedly high rates for extended periods of time. The options the Commission provides in its proposed guidance are two-part subscription tariffs, approaches similar to Valley Clean Energy's price-adjustment, transactive pricing options, and bill limiters or bill protection.

Customer protection measures are important to ensure that participants in dynamic rates are not exposed to unreasonable or unpredictable bill impacts. However, if these measures overly shield customers from real-time price fluctuations, they can significantly weaken the very price signals needed to encourage load shifting and grid-responsive behavior. As discussed in the Final Evaluation Report for SCE's Dynamic Rate Pilot, high dynamic prices did not drive significant load shifting, which could be due in part to the subscription pricing muting the bill impact of load shifting. As discussed in the report, "The evaluation of cost recovery concluded that the customer's subscription load profiles were the most important factor in determining whether a customer was due a shadow bill credit."³³ Although shadow billing also played a part to mute price signals, the pilot shows the outcome when customers are insufficiently incentivized to respond to signals.

Because the initial implementation of dynamic rates will be optional, participants are more likely to be engaged and responsive if given the opportunity to manage greater portions of their load under true dynamic price exposure. For large customers, the PD already allows negotiated subscription levels below 100% of historical load, providing an incentive to respond to price signals for the unsubscribed portion of their usage. VGIC recommends extending similar flexibility to small customers by allowing them to opt into subscription levels lower than their Tier 1 usage allowance or "pay-for-your-load-shape" baseline. This would enable small customers to see more

³³ Final Evaluation of Southern California Edison's Dynamic Rate Pilot at 8.

of the dynamic rate's price variation, respond accordingly, and contribute meaningfully to grid needs.

Additionally, the Commission should direct the IOUs to ensure that subscriptions are easy to understand and are predictable for customers. Under current subscription models being used in dynamic rate pilots, it can be hard to understand what the subscription baseline is and how it will change over time. This issue is most prevalent when subscription baselines are finalized ex post, after a billing period has already occurred. However, even if subscription baselines are determined ex ante, it can be hard to predict exactly what they will be, especially if the subscription is based on an individual customer's usage from the past 12 months. Additionally, the utilities could be incentivized to increase subscription levels where possible to ensure additional cost recovery for non-marginal costs. To ensure that appropriate and transparent subscriptions are created, **VGIC strongly recommends this PD direct the IOUs to make clear in their dynamic rate applications how the subscription component will be implemented, including the frequency and method of updating the subscription, strategies for communicating subscription curves to customers, and how subscription data will be accessible to customers and load flexibility service providers.**

V. CONCLUSION.

VGIC appreciates the opportunity to submit these opening comments on the Proposed Decision.

Respectfully submitted,
/s/ Zach Woogen
Zach Woogen
Executive Director
VEHICLE-GRID INTEGRATION COUNCIL

Date: August 14, 2025